JS 44 (Rev. 03/24)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

Ngwa Nforbi, Brendan

(b) County of Residence of First Listed Plaintiff San Joaquin
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

Brendan Ngwa Nforbi, Plaintiff, In Propria Persona
1455 Cat Tail Drive, Stockton, CA 95204
Tel: (209) 801-4442; E-mail: bnn.cdl@gmail.com

DEFENDANTS

Home Depot U.S.A., Inc.

County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ◉ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☑ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☑ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ◉ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

V. ORIGIN *(Place an "X" in One Box Only)*

◉ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District *(specify)* ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
Cal. Penal Code § 290.46(j)(2)(E) (jurisdiction: 28 U.S.C. § 1332)

Brief description of cause:
Unauthorized employment use of Megan's Law website information after an accepted Tracy warehouse / distribution hire.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $ Exceeds $75,000

CHECK YES only if demanded in complaint:
JURY DEMAND: ◉ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE Hon. Dale A. Drozd (Sacramento) DOCKET NUMBER 2:26-cv-02847; 2:26-cv-02881

DATE 09/16/2026

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I.(a) Plaintiffs-Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. Jurisdiction. The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit. Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

V. Origin. Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

VI. Cause of Action. Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

VII. Requested in Complaint. Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. Related Cases. This section of the JS 44 is used to reference related cases, if any. If there are related cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

AO 239 (Rev. 12/13) Application to Proceed in District Court Without Prepaying Fees or Costs (Long Form)

UNITED STATES DISTRICT COURT

for the

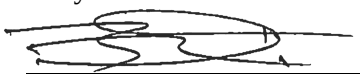
Eastern District of California

Brendan Ngwa Nforbi	)	
Plaintiff/Petitioner	)	
v.	)	Civil Action No.
Home Depot U.S.A., Inc.	)	
Defendant/Respondent	)	

APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS (Long Form)

Affidavit in Support of the Application

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested. I declare under penalty of perjury that the information below is true and understand that a false statement may result in a dismissal of my claims.

Signed: 

Instructions

Complete all questions in this application and then sign it. Do not leave any blanks: if the answer to a question is "0," "none," or "not applicable (N/A)," write that response. If you need more space to answer a question or to explain your answer, attach a separate sheet of paper identified with your name, your case's docket number, and the question number.

Date: September 16, 2026

1. For both you and your spouse estimate the average amount of money received from each of the following sources during the past 12 months. Adjust any amount that was received weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate. Use gross amounts, that is, amounts before any deductions for taxes or otherwise.

Income source	Average monthly income amount during the past 12 months		Income amount expected next month	
	You	Spouse	You	Spouse
Employment	$ 0	$ 0	$ 0	$ 0
Self-employment	$ 0	$ 0	$ 0	$ 0
Income from real property *(such as rental income)*	$ 0	$ 0	$ 0	$ 0
Interest and dividends	$ 0	$ 0	$ 0	$ 0
Gifts	$ 0	$ 0	$ 0	$ 0
Alimony	$ 0	$ 0	$ 0	$ 0
Child support	$ 0	$ 0	$ 0	$ 0

Retirement *(such as social security, pensions, annuities, insurance)*	$ 0	$ 0	$ 0	$ 0
Disability *(such as social security, insurance payments)*	$ 0	$ 0	$ 0	$ 0
Unemployment payments	$ 0	$ 0	$ 0	$ 0
Public-assistance *(such as welfare)*	$ 0	$ 0	$ 0	$ 0
Other *(specify)*:	$ 0	$ 0	$ 0	$ 0
Total monthly income:	$ 0	$ 0	$ 0	$ 0

2. List your employment history for the past two years, most recent employer first. *(Gross monthly pay is before taxes or other deductions.)*

Employer	**Address**	**Dates of employment**	**Gross monthly pay**
Unemployed	N/A	N/A	$ 0
N/A	N/A	N/A	$ 0

3. List your spouse's employment history for the past two years, most recent employer first. *(Gross monthly pay is before taxes or other deductions.)*

Employer	**Address**	**Dates of employment**	**Gross monthly pay**
N/A	N/A	N/A	$ 0
N/A	N/A	N/A	$ 0
N/A	N/A	N/A	$ 0

4. How much cash do you and your spouse have? $ 0

Below, state any money you or your spouse have in bank accounts or in any other financial institution.

Financial institution	**Type of account**	**Amount you have**	**Amount your spouse has**
N/A	N/A	$ 0	$ 0
N/A	N/A	$ 0	$ 0
N/A	N/A	$ 0	$ 0

If you are a prisoner, you must attach a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months in your institutional accounts. If you have multiple accounts, perhaps because you have been in multiple institutions, attach one certified statement of each account.

5. List the assets, and their values, which you own or your spouse owns. Do not list clothing and ordinary household furnishings.

Assets owned by you or your spouse	
Home *(Value)*	$ 0
Other real estate *(Value)*	$ 0
Motor vehicle *#1 (Value)*	$ 0
Make and year: N/A	
Model: N/A	
Registration #: N/A	
Motor vehicle *#2 (Value)*	$ 0
Make and year: N/A	
Model: N/A	
Registration #: N/A	
Other assets *(Value)*	$ 0
Other assets *(Value)*	$ 0

6. State every person, business, or organization owing you or your spouse money, and the amount owed.

Person owing you or your spouse money	**Amount owed to you**	**Amount owed to your spouse**
N/A	**$** N/A	**$** 0
N/A	**$** N/A	**$** 0
N/A	**$** N/A	**$** 0

7. State the persons who rely on you or your spouse for support.

Name (or, if under 18, initials only)	**Relationship**	**Age**
N/A	0	0
N/A	0	0
N/A	0	0

8. Estimate the average monthly expenses of you and your family. Show separately the amounts paid by your spouse. Adjust any payments that are made weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate.

	You	Your spouse
Rent or home-mortgage payment *(including lot rented for mobile home)* Are real estate taxes included? ❒ Yes ☑ No Is property insurance included? ❒ Yes ☑ No	$ 0	$ 0
Utilities *(electricity, heating fuel, water, sewer, and telephone)*	$ 0	$ 0
Home maintenance *(repairs and upkeep)*	$ 0	$ 0
Food	$ 0	$ 0
Clothing	$ 0	$ 0
Laundry and dry-cleaning	$ 0	$ 0
Medical and dental expenses	$ 0	$ 0
Transportation *(not including motor vehicle payments)*	$ 0	$ 0
Recreation, entertainment, newspapers, magazines, etc.	$ 0	$ 0
Insurance *(not deducted from wages or included in mortgage payments)*		
Homeowner's or renter's: N/A	$ 0	$ 0
Life: N/A	$ 0	$ 0
Health: N/A	$ 0	$ 0
Motor vehicle: N/A	$ 0	$ 0
Other: N/A	$ 0	$ 0
Taxes *(not deducted from wages or included in mortgage payments) (specify):*	$ 0	$ 0
Installment payments		
Motor vehicle: N/A	$ 0	$ 0
Credit card *(name)*: N/A	$ 0	$ 0
Department store *(name)*: N/A	$ 0	$ 0
Other: N/A	$ 0	$ 0
Alimony, maintenance, and support paid to others	$ 0	$ 0

Regular expenses for operation of business, profession, or farm *(attach detailed statement)*	**$** 0	**$** 0
Other *(specify)*: N/A	**$** 0	**$** 0
Total monthly expenses:	**$** 0	**$** 0

9. Do you expect any major changes to your monthly income or expenses or in your assets or liabilities during the next 12 months?

❒ Yes ☑ No If yes, describe on an attached sheet.

10. Have you spent — or will you be spending — any money for expenses or attorney fees in conjunction with this lawsuit? ❒ Yes ☑ No

If yes, how much? $ N/A

11. Provide any other information that will help explain why you cannot pay the costs of these proceedings.
I am unemployed and cannot pay the $405 filing fee. This is an employment action. I accepted a Home Depot Tracy warehouse / distribution hire, began onboarding, and the employment stopped after the background screen. I have no wages from that job.

12. Identify the city and state of your legal residence.
Stockton, California

Your daytime phone number: (209) 801-4442

Your age: N/A Your years of schooling: N/A

Last four digits of your social-security number: N/A

UNITED STATES DISTRICT COURT

for the

Eastern District of California

Brendan Ngwa Nforbi

Plaintiff(s)

v.

Home Depot U.S.A., Inc., a Delaware corporation

Defendant(s)

Civil Action No.

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Home Depot U.S.A., Inc.
c/o CSC Lawyers Incorporating Service
2710 Gateway Oaks Drive, Suite 150N
Sacramento, CA 95833

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Brendan Ngwa Nforbi
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442 — E-mail: bnn.cdl@gmail.com

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

_____
Signature of Clerk or Deputy Clerk

Civil Action No.

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* Home Depot U.S.A., Inc.
was received by me on *(date)* _____ .

❒ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____ ; or

❒ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____ , a person of suitable age and discretion who resides there,
on *(date)* _____ , and mailed a copy to the individual's last known address; or

❒ I served the summons on *(name of individual)* _____ , who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____ ; or

❒ I returned the summons unexecuted because _____ ; or

❒ Other *(specify):*

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc:

Print Save As... Reset

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **HOME DEPOT U.S.A., INC.,** **a Delaware corporation,** Defendant.	Case No. _____ **COMPLAINT FOR DAMAGES** Penal Code § 290.46(j)(2)(E), (j)(4)(A) *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:

I. NATURE OF THE ACTION

1. This action concerns an accepted Home Depot warehouse, distribution, or fulfillment hire at 5395 Hopkins Road, Tracy, California.

2. Plaintiff accepted the employment and began onboarding. Home Depot then required an employment background check. After that screening process, Home Depot stopped the onboarding and prevented Plaintiff from beginning or continuing the accepted employment.

3. Plaintiff alleges on information and belief, and on the factual basis stated below, that Home Depot's employment-screening vendor furnished Home Depot information concerning

Plaintiff disclosed pursuant to California Penal Code § 290.46, including Plaintiff's California registry information, and that Home Depot used that information for the employment decision.

4. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to California's Megan's Law internet website for a purpose relating to employment unless a statutory authorization applies.

5. Plaintiff does not allege that Home Depot was prohibited from considering independently obtained conviction information from an otherwise lawful source. The claim is source-specific: Plaintiff alleges that Home Depot used information disclosed pursuant to § 290.46 itself.

6. Plaintiff does not possess Home Depot's transaction-specific report and does not allege its source-field wording as known fact. The report, source fields, adjudication information, access history, and decision records are presently within Home Depot's and the screening vendor's possession.

II. JURISDICTION AND VENUE

7. This Court has original jurisdiction under 28 U.S.C. § 1332(a). Plaintiff is a citizen of California.

8. Home Depot U.S.A., Inc. is incorporated in Delaware and has its principal place of business in Atlanta, Georgia. It is therefore a citizen of Delaware and Georgia for diversity purposes.

9. The amount in controversy exceeds $75,000, exclusive of interest and costs, based in good faith on the accepted employment compensation and consequential economic loss

according to proof, together with the additional and exemplary relief authorized by Penal Code § 290.46(j)(4)(A). Plaintiff does not invent an hourly wage or work duration not presently contained in his records, and he does not rely on the statute's optional civil-penalty remedy to establish federal jurisdiction.

10. Plaintiff has Article III standing. He alleges a concrete economic injury—the loss of an accepted employment opportunity and its compensation—caused by Home Depot's alleged prohibited employment use and redressable through damages.

11. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events occurred in Tracy, San Joaquin County, California.

12. Under Eastern District of California Local Rule 120(d), civil actions arising in San Joaquin County are commenced on the Sacramento side of the District.

III. PARTIES

13. Plaintiff Brendan Ngwa Nforbi is a natural person and California citizen residing in San Joaquin County. He was the accepted hire and the person who was the subject of the employment background screening alleged here.

14. Defendant Home Depot U.S.A., Inc. is a Delaware corporation qualified to do business in California.

15. On information and belief, Home Depot U.S.A., Inc. owned, operated, staffed, or controlled the Tracy warehouse/distribution facility involved in Plaintiff's hire and made or controlled the employment decision challenged here.

16. Before service, Plaintiff will reconfirm Home Depot's current California Secretary of State agent. The Tracy facility is a worksite, not a separate legal entity.

IV. THE TRACY HIRE AND BACKGROUND SCREEN

17. On or about August 2024, Home Depot accepted Plaintiff for employment at its Tracy warehouse, distribution, or fulfillment facility at 5395 Hopkins Road.

18. Plaintiff accepted the employment and began Home Depot's onboarding process.

19. As part of onboarding, Home Depot required and initiated an employment background check concerning Plaintiff.

20. The position was warehouse, distribution, or fulfillment work. Plaintiff was not hired for a commercial motor-vehicle driving assignment.

21. Plaintiff was publicly listed on California's Megan's Law internet website at the time of the screening.

22. After the background-screening process, Home Depot ceased Plaintiff's onboarding and prevented him from beginning or continuing the accepted employment.

23. Home Depot did not communicate to Plaintiff an independent post-screening reason for ending the hire.

V. FACTUAL BASIS FOR THE FIRST ADVANTAGE ALLEGATIONS

24. Plaintiff alleges on information and belief that First Advantage Background Services Corp. was the consumer-reporting / employment-screening vendor Home Depot used for Plaintiff's screening.

25. That allegation is not based solely on the fact that another employer used First Advantage.

26. In *Ford v. Home Depot U.S.A., Inc.*, No. 3:19-cv-00754-AJB-LL (S.D. Cal.), a Home Depot-branded Background Check Disclosure and Authorization filed as Exhibit 1 identifies First Advantage Background Services Corp. as the consumer reporting agency Home Depot would use to procure California investigative consumer reports, directs background-report requests to Home Depot care of First Advantage, and describes a pre-adverse process involving a report and a summary of FCRA rights.

27. That public Home Depot–First Advantage disclosure is a concrete factual basis to allege First Advantage's role on information and belief while the transaction-specific order and report remain in Home Depot's and First Advantage's possession.

VI. FACTUAL BASIS FOR REGISTRY SOURCE AND USE

28. On information and belief, the same CRA, screening this same consumer in the same period, returned California-registry source fields. Plaintiff does not allege that any other employer's report is Home Depot's report, and he does not attach or describe those reports as if they were.

29. On information and belief, First Advantage prepared or furnished an

employment-screening report or result concerning Plaintiff to Home Depot in connection with the Tracy hire.

30. On information and belief, that Home Depot-specific screening contained information concerning Plaintiff disclosed pursuant to Penal Code § 290.46, including Plaintiff's California registry information.

31. On information and belief, Home Depot received, accessed, considered, or used that § 290.46 information in deciding whether Plaintiff would begin or continue the accepted Tracy employment.

32. Plaintiff alleges that the § 290.46 information was a substantial factor in Home Depot's decision.

33. The factual basis includes the accepted hire, the intervening background screen, Plaintiff's contemporaneous California registry listing, the public Home Depot–First Advantage disclosure, the cessation of onboarding after the screen, and the absence of a communicated independent reason.

34. The precise source-field wording, screening package, adjudication code, access timestamp, internal reason code, and decisionmaker identity are matters recorded in Home Depot's and First Advantage's systems.

VII. SOURCE-SPECIFIC LIMIT OF THE CLAIM

35. Plaintiff does not plead a claim based on the abstract existence of his conviction or registration status. He pleads actual use of information disclosed pursuant to § 290.46.

36. Independently obtained court-record information is different from prohibited employment use of Megan's Law website information. This complaint alleges the latter.

37. If the Home Depot-specific report is properly considered and contradicts Plaintiff's information-and-belief allegation, Plaintiff's theory must conform to that document.

VIII. STATUTE OF LIMITATIONS

38. The alleged prohibited employment use occurred on or about August 2024.

39. Plaintiff seeks the compensatory, additional, exemplary, and fee remedies authorized by Penal Code § 290.46(j)(4)(A) for the statutory liability alleged here.

40. Plaintiff proceeds on the three-year limitations period for a liability created by statute under Code of Civil Procedure § 338(a), which places an August 2024 employment-use claim within the limitations period in September 2026.

41. Because § 290.46(j)(4)(A) also contains an optional civil-penalty remedy, Plaintiff does not rely on that civil-penalty remedy to establish timeliness and does not seek it in this opening complaint.

IX. CAUSE OF ACTION

Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46

Penal Code § 290.46(j)(2)(E), (j)(4)(A)

42. Plaintiff realleges paragraphs 1 through 41.

43. Plaintiff is a person as to whom information is disclosed on California's Megan's Law internet website established pursuant to Penal Code § 290.46.

44. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for purposes relating to employment except where authorized by § 290.46(j)(1) or another provision of law.

45. On information and belief, information disclosed pursuant to § 290.46 concerning Plaintiff was furnished or made available to Home Depot through its employment-screening process.

46. On information and belief, Home Depot received, accessed, considered, and used that information for a purpose relating to employment.

47. The use was a substantial factor in Home Depot's decision to deny, withdraw, end, prevent, or not finalize Plaintiff's accepted Tracy employment.

48. Plaintiff is unaware of any law authorizing Home Depot to use information disclosed pursuant to § 290.46 for this warehouse, distribution, or fulfillment position.

49. Home Depot thereby violated Penal Code § 290.46(j)(2)(E).

50. Penal Code § 290.46(j)(4)(A) authorizes actual damages, an additional amount within the statutory range, attorney's fees, and exemplary damages upon the required showing, among other remedies.

51. Plaintiff does not seek preventive relief under § 290.46(j)(4)(B) in this opening

complaint.

X. DAMAGES

52. Plaintiff suffered economic harm including lost employment compensation, lost earning opportunity, and other consequential loss according to proof.

53. Plaintiff seeks actual damages and the additional and exemplary relief legally available under § 290.46(j)(4)(A), without duplicative recovery.

54. Plaintiff does not presently assign an invented hourly wage, weekly-hours figure, or employment duration unsupported by the current record.

XI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests judgment against Home Depot U.S.A., Inc. for:

A. Actual damages according to proof;

B. The additional amount authorized by Penal Code § 290.46(j)(4)(A);

C. Exemplary damages to the extent authorized and proven;

D. Attorney's fees if counsel later appears and the statute permits recovery;

E. Taxable costs;

F. Prejudgment and postjudgment interest as allowed by law; and

G. Such other nonduplicative relief as the Court deems just.

XII. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 16, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona